



FLORIDA DEPARTMENT OF Environmental Protection

Northwest District
160 W. Government Street, Suite 308
Pensacola, FL 32502

Ron DeSantis
Governor

Jeanette Nuñez
Lt. Governor

Shawn Hamilton
Secretary

March 28, 2023

Cory Danner, President
North Florida Rock, Marianna
5160 Vermont Rd
Marianna, Florida 32448
cory.danner@arcosa.com

RE: Warning Letter
North Florida Rock
Facility ID: FL0980722
Jackson County

Dear Mr. Danner,

A compliance evaluation inspection was conducted at your North Florida Rock facility on February 21, 2023. During this inspection, possible violations of Section 403, Florida Statutes, Chapters 62-660 and Chapter 62-302, Florida Administrative Code, were observed.

During the inspection Department personnel noted the following:

1. The facility failed to comply with Consent Order #17-1080. (Reference Section 2, Compliance Schedules);
2. The facility is bypassing the permitted outfall device. (Reference Section 6, Facility Site Review);
3. The facility is improperly reporting dissolved oxygen compliance and is experiencing chronic pH exceedances in the effluent. (Reference Section 9, Effluent Quality); and
4. The facility failed to properly incorporate the permitted outfall device. (Reference Section 10, Effluent Disposal).

Please reference the enclosed inspection report for a detailed account of the deficiencies and recommendations for corrective actions.

Violations of Florida Statutes or administrative rules may result in liability for damages and restoration, and the judicial imposition of civil penalties, pursuant to Sections 403.121 and 403.161(2), Florida Statutes.

Please respond in writing within 15 days of receipt of this Warning Letter. Your written or emailed response shall be directed to Rebecca Bacewicz via email at Rebecca.Bacewicz@FloridaDEP.gov or (850)595-0612 and shall include the following information:

- Describe what happened to cause the deficiencies noted in the inspection report,

North Florida Rock
FL0980722
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- Describe actions taken to remediate these deficiencies, and
- Describe actions taken, or to be taken, to prevent future deficiencies of this nature.

Please be advised that this Warning Letter is part of an agency investigation, preliminary to agency action in accordance with section 120.57(5), Florida Statutes. We look forward to your cooperation in completing the investigation and resolving this matter.

Should you have any questions or comments, please contact Rebecca Bacewicz at 850-595-0612 or via e-mail at Rebecca.Bacewicz@FloridaDEP.gov.

Sincerely,



Elizabeth Mullins Orr
Director
Northwest District

EMO/RB/1

Enclosure(s): Inspection Report & Inspection Photo Log

c: Zach Gibby, Arcosa Aggregates zachary.gibby@arcosa.com
Simeon Kipfer, Arcosa Aggregates simeon.kipfer@arcosa.com
John Hopper, Arcosa Aggregates john.hopper@arcosa.com
Amy Douglas, Icarus Ecological Services amy@icaruses.com
John Lewis, Icarus Ecological Services john@icaruses.com

**FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION
WASTEWATER COMPLIANCE INSPECTION REPORT**

Facility Name and Physical Address North Florida Rock 5160 Vermont Rd Marianna, FL 32448-7473		WAFR ID FL0980722	County Jackson	Entry Date 2/21/2023	Entry Time 9:30 AM
		Facility Phone # 850-762-4315		Exit Date 2/21/2023	Exit Time 11:00 AM
LAT	30 ° 38 ' 14 "				
LONG	85 ° 10 ' 7 "				
Name(s) of Field Representatives(s) and Title		Operator Certification #	Email	Phone	
Zach Gibby, Plant Manager		N/A	simeon.kipfer@arcosa.com	850-762-4315	
Simeon Kipfer, RA		N/A	zachary.gibby@arcosa.com	850-762-4315	
John Hopper, Environmental Supervisor		N/A			
Amy Douglas, Snr Project Manager, Icarus		N/A			
John Lewis, Ecologist, Icarus		N/A			
Name & Address of Permittee / Designated Rep.		Title	Email	Phone	
Cory Danner, Permittee		President	cory.danner@arcosa.com	817-635-8500	
5160 Vermont Rd					
Marianna, FL 32445-7473					
Inspection Type	C	E	I	Samples Taken(Y/N): N	Samples Split (Y/N) : N/A
☐ Domestic ☒ Industrial					

FACILITY COMPLIANCE AREAS EVALUATED							
IC = In Compliance; MC = Minor Out of Compliance; NC = Out of Compliance; SC = Significant out of Compliance; NA = Not Applicable; NE = Not Evaluated							
Significant Non-Compliance Criteria Should be Reviewed when Out of Compliance Ratings Are Given in Areas Marked by a "♦"							
	PERMITS/ORDERS		SELF MONITORING PROGRAM		FACILITY OPERATIONS		EFFLUENT/DISPOSAL
IC	1. ♦ Permit	IC	3. Laboratory	NC	6. Facility Site Review	SC	9. ♦ Effluent Quality
NC	2. ♦ Compliance Schedules	IC	4. Sampling	IC	7. Flow Measurement	SC	10. ♦ Effluent Disposal
		IC	5. ♦ Records & Reports	IC	8. ♦ Operation & Maintenance	NA	11. Residuals/Sludge
						NA	12. Groundwater
NA	14. Other					NA	13. ♦ SSO Survey

Facility and/or Order Compliance Status:		
☐ In-Compliance	☐ Out-Of-Compliance	☒ Significant-Out-Of-Compliance
Recommended Actions: Review inspection report with deficiencies and corrective actions. Deficiency Summary follows inspection report.		
Name(s) and Signature(s) of Inspector(s)		District Office/Phone Number
Larry Couch 		NWD / 850-767-0047
Name and Signature of Reviewer		Date
Rebecca Bacewicz 		3/21/2023
		3/23/2023

Single Event Violations (“*” SNC SEVs)

Check for Yes	Evaluation Area	Description	Finding Description	Finding ID
☐	Permit	Effluent Violations - Unapproved Bypass	Wastewater was diverted from a portion of the treatment process without department approval.	UNBY
☐	*Permit	Permit Violations - Discharge Without a Valid Permit	The facility was operating without a permit or with an expired permit.	UPHI
☐	Permit	Permit Violations - Failure to Submit Timely Permit Renewal Application	The permittee failed to submit an application to renew the existing permit at least 180 days prior to expiration.	PFSA
☐	Laboratory	Management Practice Violations - Laboratory Not Certified	The laboratory was not certified by the National Environmental Laboratory Accreditation Conference (NELAC).	LNCE
☐	Sampling	Monitoring Violations - Analysis not Conducted	The facility failed to collect and/or analyze samples as required by permit or enforcement action.	ANCV
☐	Sampling	Monitoring Violations - Failure to Monitor for Toxicity Requirements	The facility failed to collect and/or analyze routine or follow-up toxicity samples.	FTOX
☐	Records and Reports	Management Practice Violations - Failure to Develop Adequate SPCC Plan	The facility failed to develop or maintain their Spill Prevention Control and Countermeasures (SPCC) plan.	FSPC
☐	Records and Reports	Management Practice Violations - Failure to Maintain Records	The facility failed to maintain records for the required retention period.	FMRR
☐	Records and Reports	Reporting Violations - Failure to Notify	The permittee failed to notify the department of any event or activity that requires notification as required by permit or rule.	RSWP
☐	Records and Reports	Reporting Violations - Failure to Submit DMRs	The permittee failed to submit any DMR required by rule, permit, or enforcement action in a timely manner.	FDMR
☐	Records and Reports	Reporting Violations - Failure to submit required report (non-DMR, non-pretreatment)	The facility failed to submit any report required by rule, permit, enforcement action or inspection activity except for DMRs.	FRPT
☐	Facility Site Review	Management Practice Violations - Improper Land Application (non-503, non-CAFO)	The land application system was not being maintained.	LASN
☐	Flow Measurement	Monitoring Violations - No Flow Measurement Device	The facility failed to install a flow measurement device, an approved flow measurement device, or a working flow measurement device.	NOFL
☐	Operation and Maintenance	Management Practice Violations - Improper Operation and Maintenance	The facility failed to follow their operation and maintenance plan/manual.	IONM
☐	Operation and Maintenance	Management Practice Violations - Inflow/Infiltration (I/I)	The facility had an inflow and infiltration problem causing collection system issues and/or operational issues.	ININ
☐	Operation and Maintenance	Management Practice Violations - No Licensed/Certified Operator	The facility was being operated without a certified operator or by an operator that is not licensed for the size of plant.	ONCO
☐	*Effluent Quality	Effluent Violations - Failed Toxicity Test	Persistent acute toxicity has been documented through follow-up tests.	EATX
☐	*Effluent Quality	Effluent Violations - Failed Toxicity Test	Persistent chronic toxicity has been documented through follow-up tests.	ECTX
☐	*Effluent Quality	Effluent Violations - Failed Toxicity Test	Persistent acute or chronic toxicity has been documented in the effluent through the use of routine and follow-up tests.	ETOX
☒	Effluent Quality	Effluent Violations - Narrative Effluent Violation	The facility violated a permit or enforcement narrative effluent limit.	XNEV
☐	Effluent Quality	Effluent Violations - Reported Fish Kill	The facility had a discharge of wastewater that resulted in a fish kill.	XFSH
☐	Sanitary Sewer Overflow Survey	WW SSO - Discharge to Waters	A sewage spill from any components of a collection/transmission system or from a treatment plant reached surface waters including stormwater conveyance system or drainage ditch.	SSO1
☐	Sanitary Sewer Overflow Survey	WW SSO - Failure to Maintain Records or Meet Record Keeping Requirements	The facility failed to keep routine documentation and reporting records of spills, and/or operation and maintenance activities on the collection/transmission system.	SSO2
☐	Sanitary Sewer Overflow Survey	WW SSO - Failure to monitor	The facility failed to collect and/or analyze bacteriological samples for sewage spills that reached surface waters.	SSO3
☐	Sanitary Sewer Overflow Survey	WW SSO - Failure to report violation that may endanger public health 122.41(l)(7)	The facility failed to report a sewage spill within 24 hours of discovery.	SSO4
☐	Sanitary Sewer Overflow Survey	WW SSO - Improper Operation and Maintenance	The facility failed to perform routine preventative maintenance to keep the collection/transmission system in good working order.	SSO5
☐	Sanitary Sewer Overflow Survey	WW SSO - Overflow to Dry Land	A sewage spill from any part of a collection/transmission system or treatment plant that did not make it to surface waters, i.e., stormwater collection system, drainage ditch, stream, pond, or lake.	SSO6

Facility Treatment Summary: This is a sand mine that treats industrial wastewater with the use of a settling pond.

1. Permit: In-Compliance

Date Permit issued	01/14/2019
Date Permit Expires	01/13/2024
Permit Renewal Application due by	07/17/2023
Administrative or Judicial Orders?	N/A

1.1 Observation: The facility's permit was available for review during the inspection.

2. Compliance Schedules: Out-of-Compliance

If the facility has a compliance schedule in a permit, Administrative Order or Enforcement Action are they in compliance with the schedule?	☐ Yes ☒ No ☐ NA
Are the Compliance Date(s), Construction Milestone(s), Enforcement Order Schedule(s) or Final Compliance Date started/completed within 90 days of the due date?	☐ Yes ☒ No ☐ NA

2.1 Deficiency: Facility did not complete construction referenced in paragraph 10.b of [Consent Order CO 17-1080](#) within 90 days of the Department issuing the permit. The deadline for the required construction was extended to April 14, 2019 as approved by the Department in an [email](#) dated January 17, 2019. The Department did not receive a Notification of Completion of Construction for the required work and is therefore out of compliance with the Consent Order.

Rule/Permit Reference: 403.161(1)(b), F.S, 62-620.610 FAC

Corrective Action: Remove or plug existing pipes to allow weir to function as designed. Within 15 days of this letter, provide the Department with a schedule of work to be done to bring the outfall into compliance. Provide the Department with a Notification of Completion of Construction when work has been completed.

3. Laboratory: In-Compliance

3.1 Observation: The facility's laboratory (The Water Spigot NELAP #E81105) is certified for all matrices, test methods and analytes being measured to comply with the permit.

4. Sampling: In-Compliance

4.1 Observation: Icarus Ecological Services conducts the sampling for the facility.

4.2 Observation: Sampling is being conducted at permitted location.

5. Records and Reports: In-Compliance

Documents/Records reviewed	Timeframe
Best Management Practices (BMP) Plan	
BMP Plan onsite and available and reviewed by staff? (3)(e)(1.)	☒ Yes ☐ No ☐ NA
BMP Plan identifies, contains and/or addresses the following:	
Prepared by certified Engineer?	☒ Yes ☐ No ☐ NA
Includes plots, plans, drawings or maps?	☒ Yes ☐ No ☐ NA
Identifies areas, systems, and components with the potential to release pollutants to surface waters?	☒ Yes ☐ No ☐ NA
Prediction of the direction, flowrate, and total quantity of pollutants which could be discharged from the facility?	☒ Yes ☐ No ☐ NA
Specific preventative and remedial procedures to prevent pollutants from reaching state waters?	☒ Yes ☐ No ☐ NA
Is modified when there is a change at the facility?	☒ Yes ☐ No ☐ NA

5.1 Observation: All requested records and reports were available for inspection.

6. Facility Site Review: Out-of-Compliance

Design Requirements (62-660.804(4)(c) and (b))	
Measures in place at facility to prevent unauthorized entry around entire perimeter of site?	☒ Yes ☐ No ☐ NA
All earthen dams storing process water and runoff above grade properly constructed and maintained?	☒ Yes ☐ No ☐ NA
Facility is designed and constructed as designed in permit application?	☐ Yes ☒ No ☐ NA

6.1 Deficiency: Facility was not constructed per design description in permit application. Facility outfall of effluent from settling pond has piping in place that bypasses permitted 8-foot broad-crested weir with concrete block agitators on discharge slope of weir. Please refer to pictures 8-10 for reference.

Rule/Permit Reference: 62-620.300

Corrective Action: Remove or plug existing pipes to allow weir to function as designed. Within 15 days of this letter, provide the Department with a schedule of work to be done to bring the outfall into compliance. Provide the Department with a Notification of Completion of Construction when work has been completed.

6.2 Observation: The facility is following the BMP Plan and there were no signs of overflow from the sand mine pit.

6.3 Observation: The facility has one sand mine pit and one settling pond on site.

7. Flow Measurement: In-Compliance

7.1 Observation: Flow is being recorded using an in-stream flow measurement device.

8. Operation and Maintenance: In-Compliance

Operational Requirements (62-660.804)(5)	
Number of ponds onsite:	One mine pond, one settling pond
Site grading directs all wastewater and stormwater to swales and settling ponds?	☒ Yes ☐ No ☐ NA
Pond berms/banks appear structurally sound?	☒ Yes ☐ No ☐ NA
Ponds free of sediment/excessive solids/vegetation/sheen?	☒ Yes ☐ No ☐ NA
Evidence of unauthorized offsite discharges to ground or surface waters?	☐ Yes ☒ No ☐ NA
Are chemicals added to process water? (If yes, list type)	☐ Yes ☒ No ☐ NA
Is site maintaining inspection frequency and logs?	☒ Yes ☐ No ☐ NA
Does the facility conduct groundwater monitoring?	☐ Yes ☐ No ☒ NA
Were there any groundwater permit limit violations?	☐ Yes ☒ No ☐ NA
Has the mine expanded its operations?	☐ Yes ☒ No ☐ NA
If operations have been expanded, has a new ERP permit been applied for?	☐ Yes ☐ No ☒ NA

8.1 Observation: Records of facility inspections were up to date. Operations are being conducted in a manner to prevent the potential for water quality impacts.

9. Effluent Quality: Significant-Out-Of-Compliance

DMR review period:	11/01/2019 to 02/13/2023
*Are the effluent limits without exceedances four out of six months (chronic criteria)?	☐ Yes ☒ No ☐ NA
*Did the effluent limits exceed the Technical Review Criteria less than two times in a six-month period?	☐ Yes ☒ No ☐ NA
Was the facility free of a discharge of wastewater that resulted in a fish kill?	☒ Yes ☐ No ☐ NA
Does the facility meet the permit or enforcement narrative effluent limitation(s)? (Non-DMR visible sheen defined as iridescence present so as to cause taste or odor, or otherwise interfere with the beneficial use of the receiving water)	☒ Yes ☐ No ☐ NA
Is the effluent free from excessive (suspended solids, foam, grease, scum) in the discharge stream?	☒ Yes ☐ No ☐ NA

- Significant Non-Compliance Criteria per Program Guidance Memo OWM-00-01 Should be Reviewed when Checklist Items Deficiencies are Noted and Marked by a “*”

9.1 Deficiency: See Table below. Exceedances for pH and Dissolved Percent Oxygen meet chronic criteria for the DMR review period of 11/01/2019 to 02/13/2023.

Date	Description	Result	Limit	Units	Statistical Base
12/31/2022	Oxygen, Dissolved Percent Saturation	89.06	90.0	% smpcmpln	TM - Minimum Total Monthly
11/30/2022	Oxygen, Dissolved Percent Saturation	89.55	90.0	% smpcmpln	TM - Minimum Total Monthly
9/30/2022	Oxygen, Dissolved Percent Saturation	92.15	90.0	% smpcmpln	MP - Monthly Total
9/30/2022	Turbidity	30.4	29.0	NTU	MB - Maximum
8/31/2022	Oxygen, Dissolved Percent Saturation	92.94	90.0	% smpcmpln	MP - Monthly Total
7/31/2022	pH	8.55	8.5	s.u.	MB - Maximum
6/30/2022	pH	9.09	8.5	s.u.	MB - Maximum
5/31/2022	pH	9.02	8.5	s.u.	MB - Maximum
4/30/2022	pH	9	8.5	s.u.	MB - Maximum
3/31/2022	Turbidity	29.8	29.0	NTU	MB - Maximum
3/31/2022	pH	8.73	8.5	s.u.	MB - Maximum
2/28/2022	Oxygen, Dissolved Percent Saturation	110.22	90.0	% smpcmpln	MP - Monthly Total
1/31/2022	Oxygen, Dissolved Percent Saturation	114.8	90.0	% smpcmpln	MP - Monthly Total
1/31/2022	pH	8.78	8.5	s.u.	MB - Maximum
12/31/2021	Oxygen, Dissolved Percent Saturation	105.21	90.0	% smpcmpln	MP - Monthly Total
12/31/2021	pH	8.89	8.5	s.u.	MB - Maximum
11/30/2021	Oxygen, Dissolved Percent Saturation	111.46	90.0	% smpcmpln	MP - Monthly Total
11/30/2021	pH	8.7	8.5	s.u.	MB - Maximum
10/31/2021	Oxygen, Dissolved Percent Saturation	98.49	90.0	% smpcmpln	MP - Monthly Total
9/30/2021	Oxygen, Dissolved Percent Saturation	91.97	90.0	% smpcmpln	MP - Monthly Total
7/31/2021	Oxygen, Dissolved Percent Saturation	93.09	90.0	% smpcmpln	MP - Monthly Total
4/30/2021	Oxygen, Dissolved Percent Saturation	99.58	90.0	% smpcmpln	MP - Monthly Total
4/30/2021	Solids, Total Suspended	47.75	20.0	mg/L	AB - Annual Average
3/31/2021	Oxygen, Dissolved Percent Saturation	105.41	90.0	% smpcmpln	MP - Monthly Total
2/28/2021	Oxygen, Dissolved Percent Saturation	113.42	90.0	% smpcmpln	MP - Monthly Total
1/31/2021	Oxygen, Dissolved Percent Saturation	113.2	90.0	% smpcmpln	MP - Monthly Total
11/30/2020	Oxygen, Dissolved Percent Saturation	96.61	90.0	% smpcmpln	MP - Monthly Total
10/31/2020	pH	0	6.0	s.u.	ME - Minimum
5/31/2020	Oxygen, Dissolved Percent Saturation	90.7	90.0	% smpcmpln	MP - Monthly Total
5/31/2020	Solids, Total Suspended	68	60.0	mg/L	MB - Maximum
3/31/2020	Oxygen, Dissolved Percent Saturation	90.5	90.0	% smpcmpln	MP - Monthly Total
2/29/2020	Oxygen, Dissolved Percent Saturation	91.3	90.0	% smpcmpln	MP - Monthly Total
1/31/2020	Oxygen, Dissolved Percent Saturation	91	90.0	% smpcmpln	MP - Monthly Total
11/30/2019	Oxygen, Dissolved Percent Saturation	92.5	90.0	% smpcmpln	MP - Monthly Total

Rule/Permit Reference: 40 CFR 123.45

Corrective Action: Exceedances for Dissolved Percent Oxygen were due to a reporting error. Oxygen, Dissolved Percent Saturation should be calculated as % Smpcmpln, which is a calculation of percent compliance. The facility has been

reporting actual dissolved oxygen averages. With your response to this report, please resubmit incorrect DMRs and address the possible causes and proposed solutions to pH excursions.

9.2 Deficiency: See Table above. Exceedances for pH and Dissolved Percent Oxygen meet Technical Review Criteria for the DMR review period of 11/01/2019 to 02/13/2023.

Rule/Permit Reference: 40 CFR 123.45

Corrective Action: Exceedances for Dissolved Percent Oxygen were due to a reporting error. Oxygen, Dissolved Percent Saturation should be calculated as % Smpcmpln, which is a calculation of percent compliance. The facility has been reporting actual dissolved oxygen averages. With your response to this report, please resubmit incorrect DMRs and address the possible causes and proposed solutions to pH excursions.

9.3 Observation: Effluent water, though somewhat cloudy-white in appearance, was free from solids.

10. Effluent Disposal: Significant-Out-Of-Compliance

The discharge location(s) are as per the permit?	11/01/2019 to 02/13/2023
*At the time of inspection was the mine observed to be free from evidence of a bypass or failure from the storage ponds?	☒ Yes ☐ No ☐ NA
The disposal pond berms were free from excessive growth or vegetation?	☒ Yes ☐ No ☐ NA
*Was the disposal system being operated as designed with a low potential for water quality or health impacts?	☒ Yes ☐ No ☐ NA
*There was no unauthorized operation or modification of the effluent disposal system.	☐ Yes ☒ No ☐ NA
Is the facility free from any Effluent Disposal violation not listed above that needs to be addressed?	☒ Yes ☐ No ☐ NA
• Significant Non-Compliance Criteria per Program Guidance Memo OWM-00-01 Should be Reviewed when Checklist Items Deficiencies are Noted and Marked by a “*”	

10.1 Deficiency: The facility failed to properly install the 8-foot broad-crested weir with concrete block agitators on discharge slope of weir with overland flow to outfall D-001. Existing pipes were in place that allowed the weir to be bypassed. Please refer to pictures 8-10 for reference.

Rule/Permit Reference: 62-302.500 F.A.C.

Corrective Action: Remove or plug existing pipes to allow weir to function as designed. Within 15 days of this letter, provide the Department with a schedule of work to be done to bring the outfall into compliance. Provide the Department with a Notification of Completion of Construction when work has been completed.

11. Residual/Sludge: Not Applicable

12. Groundwater Quality: Not Applicable

13. SSO Survey: Not Applicable

Additional Comments: Sanitary sewer overflow regulations only apply to domestic wastewater facilities. All industrial or domestic facilities however must report any unauthorized releases of wastewater (spills) to the Department. This requirement is applicable to all facilities with a discharge. If a spill is less than 1,000 gallons, and is not expected to reach surface waters, the report may be made to the District Office at (850) 872-4375, or to the State Watch Office (SWO) at (800) 320-0519. If the spill is 1,000 gallons or more, and/or if the spill (of any size) reaches surface waters, the report must be made to the SWO. If there is a question whether or not a spill has reached (or will reach) surface waters, the facility should err on the side of safety and report the spill to the SWO.

Also, Section 403.077, Florida Statutes, regarding public notification of pollution incidents went into effect July 1, 2017. As required by this statute, the Department has established a method for regulated entities to submit Public Notices of pollution. Please see the website below for more information. The statute requires owners or operators of facilities responsible for reportable pollution releases, as defined by the statute, to submit reports within 24 hours of the discovery of the release to the Department, and for the Department to post the information online within 24 hours.

<http://www.dep.state.fl.us/pollutionnotice/>

14. Other: Not Applicable

Deficiency Summary:

Evaluation Area: Compliance Schedules	
Rule: 403.161(1)(b), F.S, 62-620.610 FAC	Deficiency: (Narrative) Facility did not complete construction referenced in paragraph 10.b of Consent Order CO 17-1080 within 90 days of the Department issuing the permit. The deadline for the required construction was extended to April 14, 2019 as approved by the Department in an email dated January 17, 2019. The Department did not receive a Notification of Completion of Construction for the required work and is therefore out of compliance with the Consent Order.
	Corrective Action(s): (Narrative) Remove or plug existing pipes to allow weir to function as designed. Within 15 days of this letter, provide the Department with a schedule of work to be done to bring the outfall into compliance. Provide the Department with a Notification of Completion of Construction when work has been completed.
Evaluation Area: Facility Site Review	

Rule: 62-620.300	Deficiency: (Narrative) Facility was not constructed per design description in permit application. Facility outfall of effluent from settling pond has piping in place that bypasses permitted 8-foot broad-crested weir with concrete block agitators on discharge slope of weir. Please refer to pictures 8-10 for reference.
	Corrective Action(s): (Narrative) Remove or plug existing pipes to allow weir to function as designed. Within 15 days of this letter, provide the Department with a schedule of work to be done to bring the outfall into compliance. Provide the Department with a Notification of Completion of Construction when work has been completed.
Evaluation Area: Effluent Quality	
Rule 40 CFR 123.45	Deficiency: (Narrative) Exceedances for pH and Dissolved Percent Oxygen meet chronic criteria for the DMR review period of 11/01/2019 to 02/13/2023.
	Corrective Action(s): (Narrative) Exceedances for Dissolved Percent Oxygen were due to a reporting error. Oxygen, Dissolved Percent Saturation should be calculated as % Smpcmpln, which is a calculation of percent compliance. The facility has been reporting actual dissolved oxygen averages. With your response to this report, please resubmit incorrect DMRs and address the possible causes and proposed solutions to pH excursions.
Evaluation Area: Effluent Disposal	
Rule 62-302.500 F.A.C.	Deficiency: (Narrative) The facility failed to properly install the 8-foot broad-crested weir with concrete block agitators on discharge slope of weir with overland flow to outfall D-001. Existing pipes were in place that allowed the weir to be bypassed. Please refer to pictures 8-10 for reference.
	Corrective Action(s): (Narrative) Remove or plug existing pipes to allow weir to function as designed. Within 15 days of this letter, provide the Department with a schedule of work to be done to bring the outfall into compliance. Provide the Department with a Notification of Completion of Construction when work has been completed.



Florida Department of Environmental Protection Inspection Photo Log

Photo Log

Date: 02/21/2023

Facility Name: North Florida Rock

Facility Location: 5160 Vermont Rd, Marianna, FL 32448-7473

Facility ID: FL0980722

Camera Used: Fuji Film XP, Serial Number: 7TC10689

Photographer: Larry Couch, DEP

Department Representatives Present: Larry Couch

Facility Representatives Present: Amy Douglas, Zach Gibby, John Hopper, Simeon Kipfer, John Lewis

Photo #1: [Click or tap here to enter text.](#)



Description Photo #1: Facing west (pointing north) overlooking Pit A from the southern boundary.



Florida Department of Environmental Protection Inspection Photo Log

Photo #2: [Click or tap here to enter text.](#)



Description Photo #2: Facing north overlooking Pit A from the southern boundary.

Photo #3: [Click or tap here to enter text.](#)



Description Photo #3: Facing east from the southern boundary of Pit A with processing area to the right.



Florida Department of Environmental Protection Inspection Photo Log

Photo #4: Click or tap here to enter text.



Description Photo #4: Processing area facing north from office building.

Photo #5: Click or tap here to enter text.

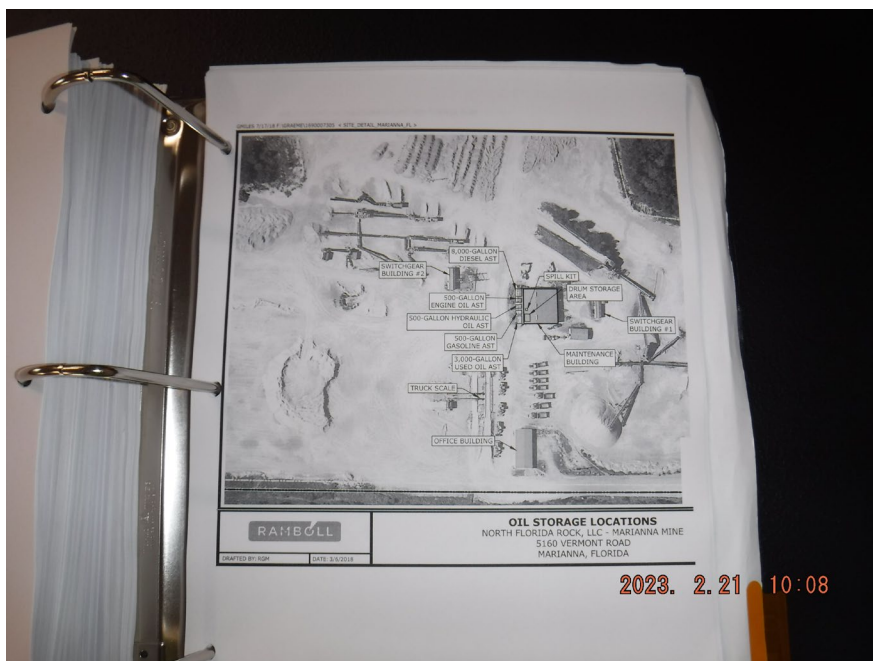


Description Photo #5: Truck scale.



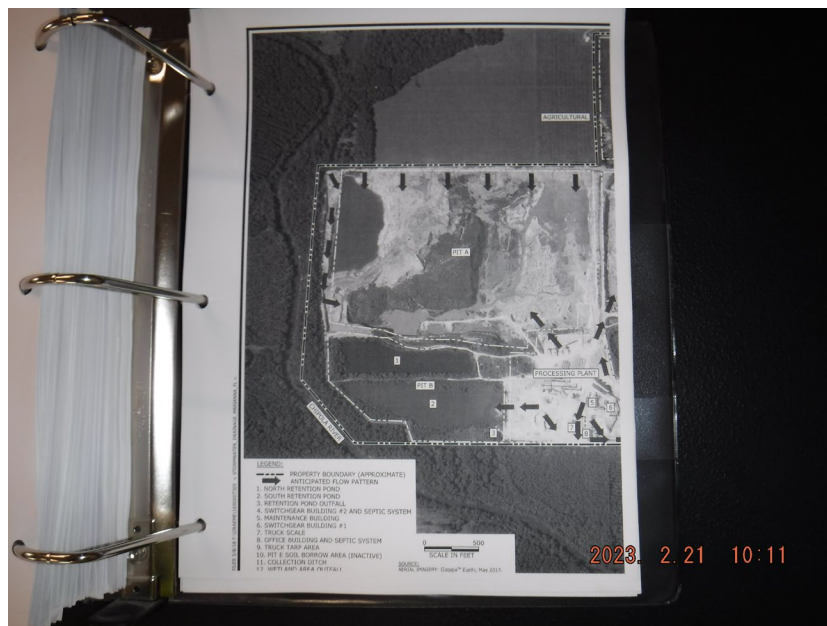
Florida Department of Environmental Protection Inspection Photo Log

Photo #6: Click or tap here to enter text.



Description Photo #6: Oil Storage Locations map within SPCC Plan.

Photo #7: Click or tap here to enter text.



Description Photo #7: Anticipated flow pattern illustrated in the facility SWPPP.



Florida Department of Environmental Protection Inspection Photo Log

Photo #8: Click or tap here to enter text.



Description Photo #8: Settling pond facing NW from concrete weir at outfall D-001.

Photo #9: Click or tap here to enter text.



Description Photo #9: Outfall D-001 facing south from concrete weir.



Florida Department of Environmental Protection Inspection Photo Log

Photo #10: Click or tap here to enter text.



Description Photo #10: Inflow under weir with piping. Click or tap here to enter text.